

Revision Lecture

Assessments

MCQ held on Tort Moodle Page

- ☐ 45 questions
- ☐ 30 minutes
- ☐ 05 May 2026
- ☐ 10am-4pm (window)

Exam held on Exam Moodle

- ☐ Choose from 3 PQs + 3 EQs
- ☐ Answer 1 PQ + 1 EQ
- ☐ Date: 12 May 2026
- ☐ Time: 9:30 – 12:30 (3 hours)
- ☐ Word Limit Total: 3,000



Assessment Advice

Problem Questions



- ❑ Basics: ❌ intro | ✅ subheadings | ✅ paras
- ❑ Subheadings: C1 v D1, C2 v D1 etc etc
- ❑ Systematic, sequential, checklist approach (BUT ... FOCUS on trickier issues)
- ❑ No law/facts without facts/law
- ❑ Always Be Citing: ✅ leading modern case | ❌ common sense
- ❑ Do not waste words

Problem Questions: Do's and don'ts

1. Do **not** start by summarising the facts of the problem. Never a need to rehearse the facts of a case unless you are constructing an analogy.
2. Do **not** start with an introduction to the broad area of law. You have limited time and/or limited word count!
3. Do start by identifying the issues raised by the facts, then apply relevant authorities accordingly.
4. Do identify all the issues
5. Do refer to the principles/relevant authorities.
6. Do set out your reasoning.
7. Where the facts suggest two equally viable possibilities, **do** consider both. Be led by the facts, but do **not** speculate wildly or make up facts.
8. Do **not** discuss issues that are not raised by the problem.

Problem Questions: Do's and don'ts

9. Do **not** write everything you know about a topic. You must relate everything you write to the problem question.

10. Do use separate paragraphs for each issue. An issue requiring extensive discussion will generally need more than one paragraph.

11. Do make it clear when you have finished with an issue and are moving onto the next. Use **headings**.

12. Do apply the principles/authorities to the facts of the problem:

- i.** You must analyse the facts in light of the authorities and apply the principles/authorities to the facts in the problem.
- ii.** Remember you need analysis and application **before** you can conclude.

13. Do **not** forget to set out your conclusion, and ensure that it matches the problem instructions i.e. are you answering the question?

Essay Questions



- ❑ Answer the question
- ❑ Develop an argument based on evidence
- ❑ Introduction: ❌ 🧱 | ✅ short | ✅ clear overview
- ❑ Structure: ❌ for vs against | ✅ structured around argument
- ❑ Always Be Citing: ✅ 🧑🌾 | ❌ 🐑 | ✅ 🍲 | ❌ 🍲

Essay Questions



- ☐ Not a research exercise!
- ☐ If you're just describing, you're not analysing
- ☐ Do not write a generic essay on the topic rather than the focus of the question
- ☐ Plan your answers fully
- ☐ Do not just assert something without authority for it

MCQs

- ❑ Look at practice example – posted on Moodle Tort Announcements
- ❑ Mainly straightforward
- ❑ Largely basic principles
- ❑ Some harder questions



How to Revise

- ❑ You are not a sponge
- ❑ You have to learn
- ❑ That means memorise
- ❑ More pain = more gain
- ❑ My tactic: short notes > memorise content under each heading > memorise headings > recite





My Personal Way of Learning Stuff

The Phases of Learning

□ Sponge



□ Organise



□ Memorise



An Example: DoC



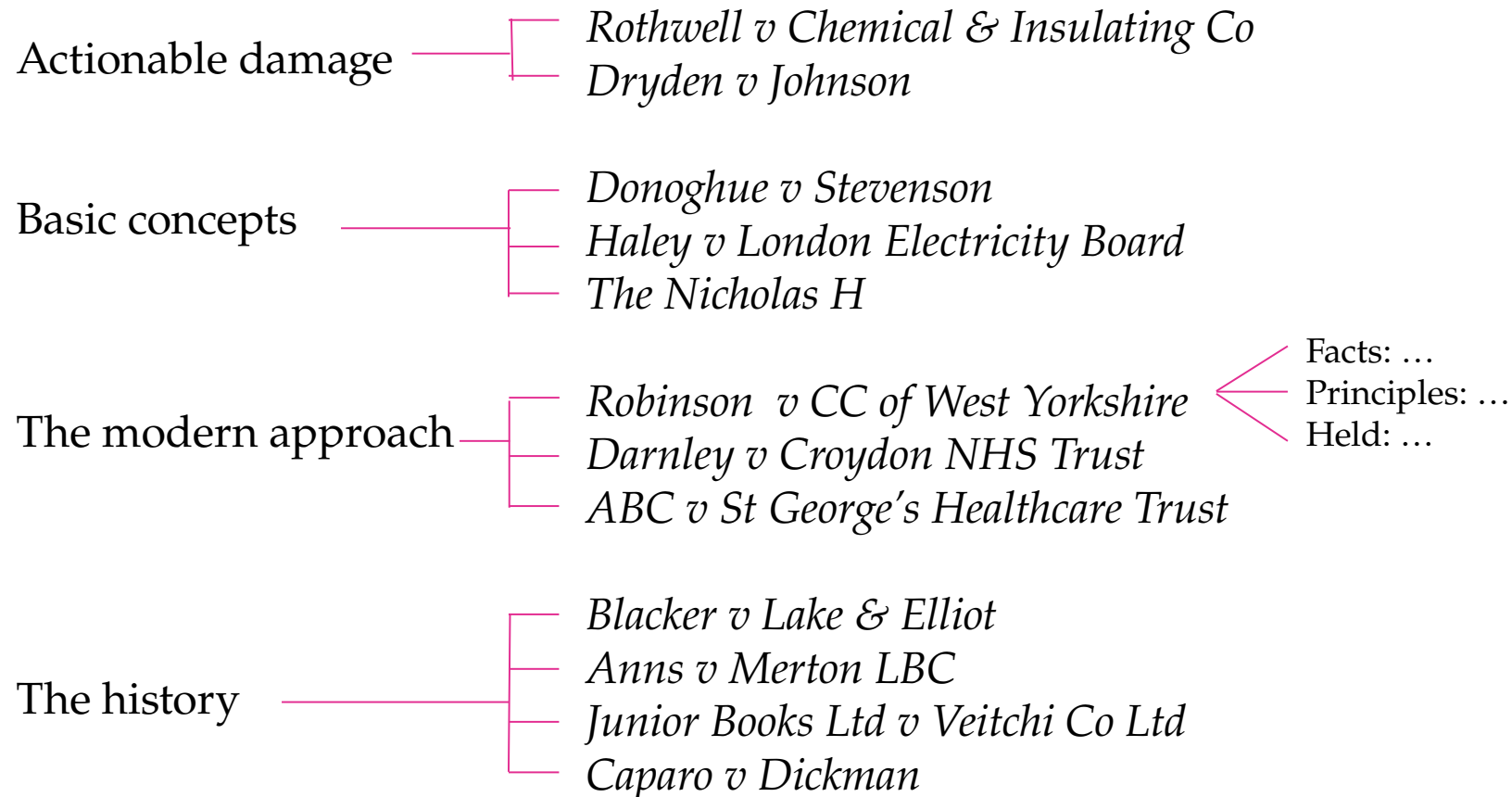
- ❑ Re-read your notes
- ❑ Re-read slides, textbook, cases where needed
- ❑ Fill in any gaps in your understanding
 - E.g. understand what the established categories approach from *Robinson* means
 - E.g. understand how this new approach is different from the old *Caparo* test
 - E.g. understand how things work in 'novel' cases by re-reading the slides on *ABC v St George's Healthcare Trust*

An Example: DoC

- ❑ Level 1: facts, principles, decision
- ❑ Level 2: case names
- ❑ Level 3: overarching sub-topics



An Example: DoC



E.g.

My student
notes

(Please ignore
the old content.
This is for
illustrative
purposes only.)

Overview

DoC

- Garo v Dickman • D prepared negligent overvaluation of shares of Relativity for shareholders. Cs were shareholders who made losses when they bought more shares on the basis of overvaluation.
- C can recover only if D knew the nature of the transaction C was going to make.
 - No liability here, b/c D made the statements for use of shareholders in AGM etc, not for C.
 - LD Bridge: 'the law should develop and categorise of negligence incrementally, e by analogy with established categories' + 'Never sufficient to ask only if D owes C a DoC, must ask what type of damage they are and DoC not to cause.'

- Hobson v. E. of W. Ind. Co. • Start with established categories. Then go to analogy e try to maintain coherence. Only if no clear answer, can 'fair, just & reasonable' be considered.

- Darby v. Longdon Health • Case law establishes that all health service staff have a duty to take reasonable care to carry out their role in a way which ensures they do not cause patients physical injury.
- A DoC was owed by the respondents to provide Mr Darby w accurate info about the availability of medical assistance.

Foreseeability

- Haley v. Llan. Electricity • It is RF that a blind person may walk along a street in London unaccompanied.

Proximity

- Garo • LD Oliver: Proximity isn't about closeness. It is just a convenient label. One must ask about more than closeness, e ask what interests the info was intended to serve.
- Horn v. Wise • LD Nicholls: "Proximity is convenient shorthand for a relationship b/w two parties which makes it fair, just & reasonable for one to owe the other a DoC."

Fair, Just, Reasonable

- The Nicholas H. • Negligent survey of ship led to it sinking.
- LD Styr: No DoC b/c (i) would disturb the balance of Hague rules, (ii) D is a not-for-profit body performing a public function, (iii) D not bound by arbitration clauses so expensive to sue charter, (iv) risk of disruption w/o referring to survey, or diverting resources from their primary function.

Actimable Damage

- Ordover v. Johnson • Platinum salt sensitisation is actimable, b/c it left Cs unable to work in red zones in the factory.

An Example: DoC

Memorising:

1. Memorise level 1
2. Test yourself on level 1 using level 2
3. Memorise level 2
4. Test yourself on level 2 using level 3
5. Memorise level 3
6. Rinse and repeat for every topic



My Way vs. Your Way

- ☐ My way probably won't work for most of you
- ☐ Find your own way to achieve the same goals
- ☐ No sponging

Key points:

- ☐ It must be organised and systematic
- ☐ It must involve at least some memorising
- ☐ It will probably be painful





Recap of Torts

Revision Checklist Overview

Negligence

- ☐ Duty of Care
 - ☐ Physical/property
 - ☐ Economic
 - ☐ Omissions
 - ☐ Psychiatric
- ☐ Breach of Duty
- ☐ Causation
- ☐ Remoteness

Land Torts

- ☐ Trespass
- ☐ Private
- ☐ Public
- ☐ Rylands

Occupier's Liability

- ☐ OLA 1957
- ☐ OLA 1984

Miscellaneous Torts

- ☐ Privacy
- ☐ Defamation
- ☐ Passing Off
- ☐ Consumer Protection

Intentional Torts

- ☐ Assault
- ☐ Battery
- ☐ *Wilkinson v Downton*
- ☐ Harassment
- ☐ False Imprisonment

Employer's Liability

- ☐ Non-Delegable Duties
- ☐ Vicarious Liability

Defences

- ☐ Ex turpi causa
- ☐ Volenti non fit injuria
- ☐ Contributory negligence?
- ☐ Specific defences

Remedies

- ☐ Damages
- ☐ Injunctions

Negligence structure recap

1. Duty of care

- Established categories approach - *Robinson*

2. Breach of duty

- The reasonable person – factors: gravity of harm, probability of harm, cost of precautions, social utility of conduct
- Special tests for: children, incapacity, professionals, industry practice

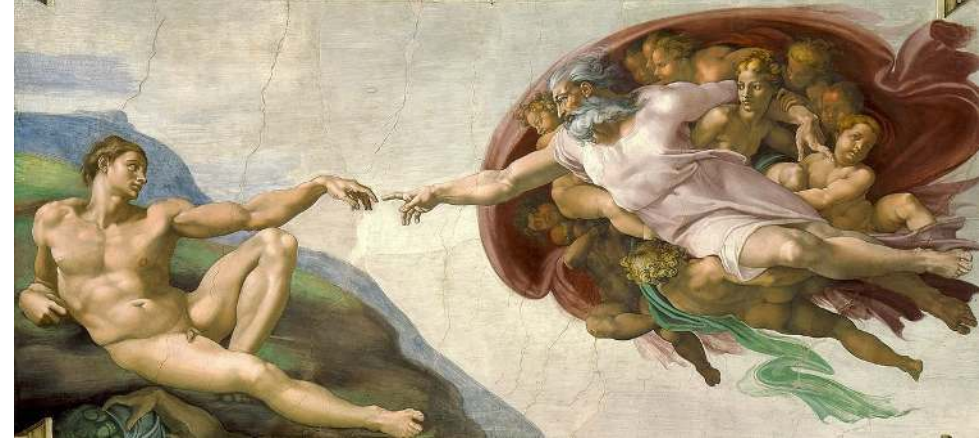
3. Factual causation

- ‘But-for’ test; material contribution to injury; material contribution to risk of injury; loss of a chance

4. Legal causation

- Remoteness of damage; new intervening acts; supervening events; ‘the scope of duty’ principle; coincidental harms

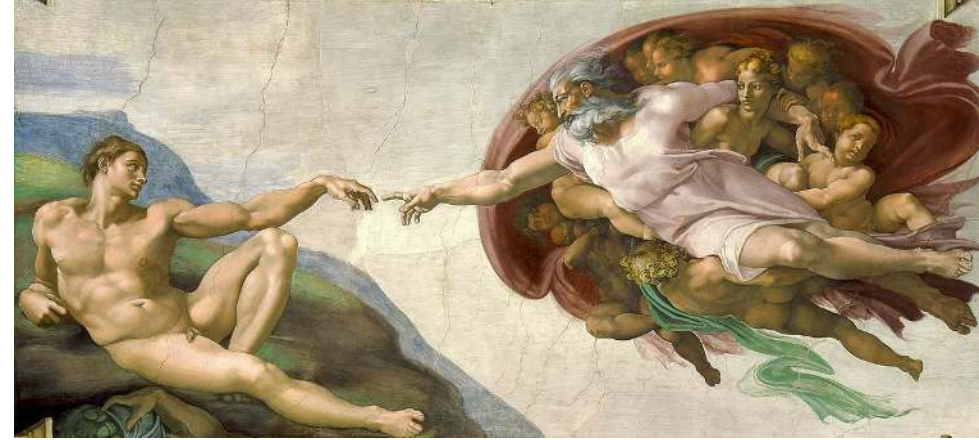
Duty of care recap



The approach to determining a duty of care after *Robinson*:

1. Does the case fall within an “established category” of DoC?
2. If the case is a novel one, does coherence with analogous cases imply that there should be a DoC?
3. If coherence with analogous cases does not clearly imply a duty/no duty, then do ‘policy reasons’ imply there ought to be a duty? [This is where *Caparo* comes in.]

Duty of care recap



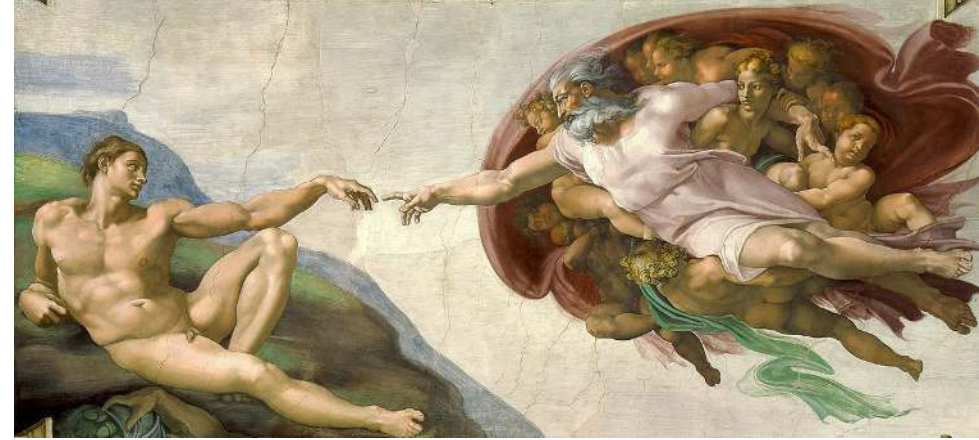
What is an established category?

- ❑ Where D does an *act* which reasonably foreseeably causes *physical injury* or *property damage* there is always a duty of care.

Things are more complicated for:

- ❑ Pure economic loss – *Hedley Byrne*
- ❑ Omissions – *N v Poole BC*
- ❑ Pure psychiatric injury

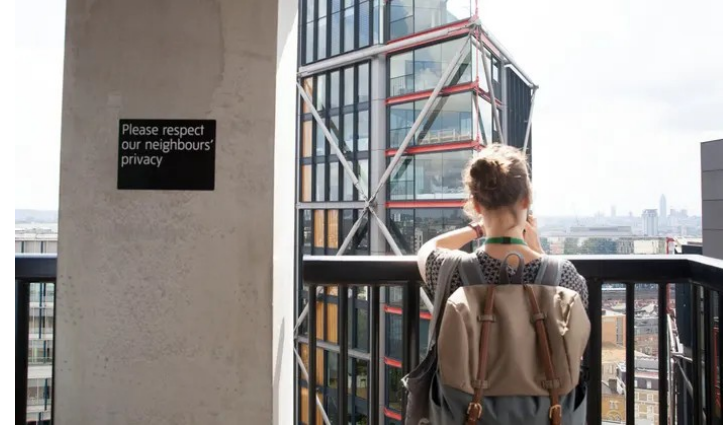
Duty of care recap



Novel duties – *ABC v St George's*

- ❑ D treating C and dad. Ds learn info about C from dad which harmed C when not disclosed.
- ❑ Policy reasoning: close proximity b/c both C and dad in treatment together; therapist's duty of confidence is not absolute; would not open floodgates.
- ❑ Novel duty: D must balance C's interest in being informed of her genetic risk against dad's interest in preserving confidentiality.

Land Torts



Trespass

- ☐ Actionable per se
- ☐ Direct interference

Private Nuisance

- ☐ Indirect interference
- ☐ Affecting use and enjoyment of C's land
- ☐ Continuous
- ☐ D unreasonable user

Land Torts

Rylands

- ☐ D occupier of the land
- ☐ D brings/keeps an exceptionally dangerous or mischievous thing on the land.
- ☐ Use of land must be non-natural/unusual; and
- ☐ Escape must cause legally recognised damage (physical or amenity)

Public Nuisance

- ☐ Indirect interference
- ☐ Act or omission
- ☐ Affecting rights of public as a whole
- ☐ Any special damage?

OLA 1957 + 1984

- ☐ Occupier?
- ☐ Visitor?
- ☐ State of the premises?
- ☐ Duty under statute?
- ☐ Breach under statute?
- ☐ Factual + legal causation?



Privacy + Defamation



□ Privacy – misuse of private information

- Did the claimant have a 'reasonable expectation of privacy' regarding the information? If so, then
- Does the claimant's interest in maintaining their right to privacy outweigh the defendant's interest in freedom of expression?

□ Defamation

- Defamatory statement? Likely to cause harm? Refer to C? Publication?
- Defences: truth; honest comment; public interest; innocent dissemination; privileged statement

Defective Products



☐ Negligence

- No liability for PEL, only for damage

☐ CPA 1987

- No liability for PEL, only for damage
- Defects
- Standard v non-standard products
- Liability for producers and others in certain circumstances
- Defences

Intentional Torts

- ❑ Battery: unlawful touching
- ❑ Assault: unlawfully causing another to fear a battery
- ❑ False imprisonment: unlawful restriction of liberty
- ❑ *Wilkinson v Downton*: intentional infliction of distress
- ❑ Harassment: a course of conduct which amounts to harassment



Vicarious Liability / NDD

□ Vicarious liability

1. Was there a tort?
2. Is the tortfeasor an employee or in a situation akin to employment?
3. Was the tort done in the course of employment?

□ Non-delegable duty

- See the five factors set out in Lord Sumption's judgment in *Woodland v Swimming Teachers Association* [2014] AC 537, at [23].

Defences

- ☐ Illegality
- ☐ Volenti
- ☐ Contributory negligence
- ☐ Other specific defences for specific torts?

Remedies

☐ Damages

- Compensatory
- Nominal
- Aggravated
- Exemplary
- Vindictory

☐ Injunctions

- Prohibitive
- Mandatory

☐ Special Provisions – Fatalities

- Fatal Accidents Act 1976
- Law Reform (Miscellaneous Provisions) Act 1934